

JUSTICE TRAINING INSTITUTE
Ministry of Justice

OPEN BOOK REVISION FOR JUSTICES OF THE PEACE IN TRAINING

Section 1 – True/False

INSTRUCTIONS:

For **EACH** statement below, indicate whether it is TRUE OR FALSE.

Where the statement is FALSE → you must indicate what makes the statement FALSE or what would make the statement TRUE.

Whether TRUE or FALSE → you are to state/quote the section(s) of the law that supports your answer(s).

- 1) The Advisory Committee consists of the Custos, the President of the Lay Magistrates' Association, the Senior Parish Judge for the parish and the most senior police officer in charge of the parish.
- 2) Once appointed, a Justice of the Peace becomes a member of the Judiciary.
- 3) The Custos' recommendation to the Minister shall state the Custos' own assessment of the person's potential for future service.
- 4) Every person whom the Minister has recommended to be appointed as Justice of the Peace may if they so wish, participate in such training course organized by the Justice Training Institute.
- 5) Failure to observe the provisions of the Code of Conduct for Justices of the Peace shall be regarded as an act of misconduct.
- 6) A Justice of Peace who has attained the age of 70 years shall be removed from the list of active Justices and placed on an Honour Roll.
- 7) The tenure of appointment of a Justice of the Peace may be terminated by virtue of the appointee's migration from Jamaica for a period not exceeding twelve (12) months.
- 8) The Bail Act makes it a requirement for bail to be granted to a defendant who is charged with an offence which is not punishable with imprisonment.

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Section 1 – True/False *(continued)*

- 9) The person applying for bail is described as the defendant.
- 10) In considering the suitability of a proposed surety, one factor to be considered is the surety's profession, occupation, trade or business.
- 11) A defendant may be granted bail after he or she has been convicted.
- 12) An Affidavit is a written statement in the name of the person who voluntarily signs and swears to, or affirms to be true, to the best of his/her knowledge.
- 13) A Statutory Declaration will usually be made after the declarant has supplied information which are statements of facts on a form or some other document.
- 14) Summonses must be directed to the person named in the information and must state the nature of the complaint, and the time and place where the named person must appear to answer the complaint.
- 15) All warrants may be described as an authority under the hand of a Justice of the Peace or a Parish Judge ordering some named person to be arrested and brought before the court.
- 16) The issue of a warrant is not limited to offences or acts done in the parish for which the Justice of the Peace exercises jurisdiction.
- 17) When observing the taking of a statement, the Justice of the Peace should make a note of the date of his/her attendance and details on matters which may have taken place in the room.
- 18) The role of the Justice of the Peace in an identification parade is to ensure that the procedure is conducted fairly and that both the eyewitness and the police comply with the rules established for the holding of the procedure.
- 19) The Justice of the Peace is not authorized to challenge any irregularities seen at an identification parade.

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Section 1 – True/False *(continued)*

- 20) In an identification parade, nine persons, including the suspect are placed in a line-up.
- 21) In an identification parade, the suspect is not allowed to choose a place in the lineup.
- 22) The team of Justices of the Peace must at all times inform the police prior to their visit to the police lock-up.
- 23) Justices of the Peace visiting the police lock up (Visiting Committee) are not allowed to ask about the well-being of the detainee.
- 24) Only persons who are charged with an offence are entitled to legal aid by a Duty Counsel.

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Section 2 – Short Answer Questions

INSTRUCTIONS:

Provide an answer to **EACH** question below.

You are required to reference by stating/quoting the section(s) of the law that supports your answer(s) to the question.

- *You may reference the training manual only if the answer cannot be found in the legislation. If you are referencing the manual – state page number(s) and paragraph(s)*
- 1) List three (3) pieces of legislation which outline the role and various functions of a Justice of the Peace.
 - 2) List three (3) criteria necessary for an individual to be eligible for appointment as a Justice of the Peace.
 - 3) List ten (10) duties of a Justice of the Peace. Explain five (5).
 - 4) Give four (4) functions of the Justices of the Peace Advisory Committee.
 - 5) Outline the procedure to be followed by the Custos upon receiving applications or nominations for appointment to the office of Justice of the Peace.
 - 6) Outline three (3) roles that a Justice of the Peace may play within the Child Diversion programme.
 - 7) Lists five (5) characteristics of a Justice of the Peace which supports high moral and ethical conduct in the administration of duties.
 - 8) According to Section 10 of the Justice of the Peace Act, what are the duties of the Executor having charge of the affairs of a Justice of the Peace?

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Section 2 – Short Answer Questions *(continued)*

- 9) Describe the identifying features of the official seal issued for use by Justices of the Peace.
- 10) List three (3) Judicial functions of a Justice of the Peace.
- 11) Discuss the relevance of the Charter of Fundamental Rights and Freedoms in relation to granting bail to a detainee.
- 12) Give four (4) circumstances under which bail may be denied where the defendant has been charged with an offence not punishable by imprisonment.
- 13) Further to the Bail Act, name three (3) persons who are exempted from serving as surety and provide a reason for each person being exempted.
- 14) List four (4) circumstances that a Justice of the Peace may take into account when considering whether to grant bail where the defendant has been charged with an offence punishable by imprisonment.
- 15) Discuss three (3) ways in which a Justice of the Peace may play a role in the processes connected with the administration of bail in criminal proceedings?
- 16) Justices of the Peace may interact with several documents as they exercise their role and functions; these documents may fall within five (5) categories. List them.
- 17) What steps are Justices of the Peace required to take when a person presents an affidavit?
- 18) It is customary for the police to request the Justice of the Peace to issue a summons. What guidelines should the Justice of the Peace follow should they receive such a request?

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Section 2 – Short Answer Questions *(continued)*

- 19) What are the functions of the Justice of the Peace when they are present at the taking of a statement being given under caution?
- 20) Outline the role of the Justice of the Peace with regards to remanding detainees in lock up.